

Part V. Finance and services

No. 11

Housing

Code

Cite this instrument as No. 11, Housing.

29 September 2026

Summary

One posted waiting list with fixed points and a written offer. A unit has no charge. A lock is not changed until notice, 30 days, and a hearing are confirmed.

Possession of reserve land still needs council allotment and the Minister under Indian Act section 20. This instrument does not replace that.

Part 1. Purpose and land

1.1 This instrument sets one waiting list and a written offer. A unit has no charge. It does not transfer title.

1.2 Indian Act subsection 20(1) requires, for lawful possession of reserve land, an allotment by council with the approval of the Minister. A certificate of possession is a Ministerial instrument under that section. A housing allocation under this instrument is a right to occupy a unit on the conditions written here. It is not a certificate of possession. Calling it one does not make it one.

1.3 Council must not use this instrument to surrender or lease reserve land. Indian Act section 38 is the path for surrender and designation.

Part 2. The list

2.1 There is one list for units the First Nation assigns. The housing officer must post it, with points and application dates, and must update it within 14 days of any change. A unit assigned to a person who is not the next eligible person on the list is void. The person who made the assignment must not make housing decisions for the rest of the term. The appeal body must post the void assignment within 7 days.

2.2 Points are only these. The housing officer must not add a point for any other reason.

Factor	Points	Proof
Time on the list	1 point for each full year, maximum 10	Application date on the file
Overcrowding	5 points if more than 2 people per bedroom	Written count signed by the applicant
Health need	5 points	Letter from a licensed health professional, dated within 180 days
No current unit of the First Nation	5 points	Housing file

2.3 A tie goes to the earlier application date. The housing officer must make the offer in writing within 14 days of a unit becoming vacant and must give the applicant 14 days to accept. An oral promise of a unit is void.

Part 3. Occupancy

3.1 There is no payment for a unit. The housing officer must not bill a member for the unit. A councillor must not set a charge for one household. A demand for payment is void on the day it is made. The appeal body must post that demand within 7 days.

3.2 A lock is not changed over money. There is no charge to collect. Any other lock change needs written notice, 30 days, a hearing offered on 14 days' notice, and the appeal body's written confirmation. A lock change that skips a step is a breach. The housing officer must restore access within 1 day of the appeal body saying so. The person who ordered the lock change must not make housing decisions for 1 year.

3.3 A councillor who is immediate family of an applicant must not take part in that file. The file goes to the appeal body, which must decide within 30 days.

Part 4. Amendment

4.1 Council must not amend this housing instrument by resolution. A resolution that tries is void on the day it is signed. The appeal body must post that fact within 14 days.

4.2 The electoral officer posts the full text at least 30 days before the vote. A vote on shorter notice is void. The officer posts the count within 3 days.

4.3 The change passes if a majority of the votes cast are yes and at least 25 percent of the electors vote. A change that would remove a check named in the constitution passes only if a majority of all electors vote yes. If that count is not met, the change is void.

4.4 The text comes into force the day after the electors adopt it under this Part. It does not repeal a law already in force unless the electors also meet that law's own replacement rule.

4.5 The appeal body reviews the text every 4 years from that day and posts a written report within 60 days. The report does not change the text.